

Archive Search — Quick Question: AI Reading and Writing About Legal-Hold-Adjacent Mail

Prepared for: Peter McKenzie, Rincon Management, to forward to outside counsel

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Purpose: one specific new question — not a re-review of the privilege/searchability opinion you already gave us on 2026-09-13.

What you already told us, for context: you concluded Rincon didn't need a blanket automated exclusion for real legal/attorney-adjacent mail in this same shared inbox, because that content was already fully visible to everyone with access to the inbox — making it *searchable* by a trained employee didn't meaningfully change that. We removed the exclusion on that basis. 3,623 conversations that used to be automatically pulled out (law-firm domains, litigation/attorney keywords, a staff legal-hold tag) went back into the normal, searchable pool as a result.

What's different now, and why we're asking again: we're adding a new step that goes beyond making that mail *findable*. An AI would read every conversation in that pool (including those same 3,623), decide whether it looks like a legal matter, and — when it does — write and permanently save its own new analysis: a category label, a one-sentence reason, and in some cases a drafted note about what Rincon's response to something should be. That's not a person reading an old email anymore. It's Rincon's own system generating new written conclusions about potentially privileged material and storing them as their own permanent, searchable record.

The question: does an AI actively reading for legal exposure and generating new written analysis of it — stored as a new, separate record from the original email — need its own privilege check before it runs, even though you concluded plain searchability didn't? We want to ask specifically because this is Rincon's own new writing about the content, not the content itself, and because it would run once, automatically, across all 254,000+ conversations with no human looking at any of it first.

Prepared with AI assistance (Claude / "Jarvis") for Rincon Management. Not legal advice — prepared to be reviewed by qualified California outside counsel.